

SERIES

The Court under siege

All the pieces in the series in a single document, in reading order. Updated 11 October 2026.

The International Criminal Court under pressure from several sides, in six pieces: the warrants nobody executes, Moscow's convictions of its judges, the states that leave, Trump's appeal at the UN, the US sanctions against the whole institution. At the end, an opinion.

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Two warrants, zero arrests

THE CONTEXT

A court can issue an arrest warrant. But if no one has the power to execute it, that warrant remains a piece of paper, however solemn. That is exactly what has happened twice in the past two years at the International Criminal Court: two heads of government under arrest warrant have visited, without consequence, states that were treaty-bound to arrest them. The first case concerns Russian President Vladimir Putin, the second Israeli Prime Minister Benjamin Netanyahu. The political circumstances could not be more different. The mechanism that makes them identical, however, is the same.

THE WARRANT AGAINST PUTIN: MONGOLIA AND TAJIKISTAN

On 17 March 2023 the ICC issued an arrest warrant against Putin over the unlawful deportation of Ukrainian children. On 3 September 2024 Putin visited Mongolia, a Rome Statute member state since 2000, received with full state honours; no arrest was made. On 24 October 2024 ICC judges formally found Mongolia in non-compliance and referred the matter to the Assembly of States Parties; the finding was upheld on appeal. On 9 October 2025 the sequence repeated in Tajikistan: Putin was received in Dushanbe, and the Tajik government cited obligations toward Moscow under the Commonwealth of Independent States framework as justification for not acting; the ICC rejected the argument and formalised a second referral to the Assembly on 19 March 2026.

THE WARRANT AGAINST NETANYAHU: HUNGARY

On 21 November 2024 the ICC issued an arrest warrant against Netanyahu, together with then-Defense Minister Yoav Gallant, for war crimes and crimes against humanity in Gaza. From 3 to 6 April 2025 Netanyahu visited Hungary at the invitation of Prime Minister Viktor Orbán, who had publicly rejected the warrant in advance and guaranteed it would not be enforced; no arrest occurred. On 16 April 2025 the ICC opened proceedings under Article 87 of the Rome Statute, setting a response deadline of 23 May; on 13 June 2025 judges formalised the finding of Hungarian non-compliance. In the same week as the visit, Orbán announced Hungary's intention to leave the Court — the first EU member state to do so. A further Netanyahu trip to Hungary was announced for March 2026, close to Hungary's elections; on 12 April 2026 opposition candidate Péter Magyar won the election and stated that, unlike Orbán, he would have Netanyahu arrested and would keep Hungary in the Court — a sign that non-cooperation

stemmed not from an institutional constraint on the country but from a political choice of the sitting government, reversible with a change of majority.

THE DECLARATIONS NEVER PUT TO THE TEST

(Reported as political-climate context, not as a fact established by the Court: after the Netanyahu warrant was issued, Argentina, the Czech Republic, Romania and Poland publicly stated they would not arrest him if he visited, while Italy and France argued for immunity on the grounds that he is head of government of a non-ICC-member state. None of these six cases involves an actual visit followed by a Court finding of non-compliance, unlike the three cases above.)

THE SYMMETRY TEST

The pattern is identical in the two principal warrants: a head of government under ICC warrant, a member state hosting him without arrest, the Court's only response a referral to the Assembly of States Parties with no coercive power whatsoever. The test holds in both directions: had Moscow received the same de facto impunity granted to Jerusalem, or vice versa, the judgment would not change. It is worth noting that Hungary runs through both cases from opposite fronts in the same stretch of time — hosting Netanyahu without arresting him while, in the same months, beginning its exit from the Court just as Moscow remains under warrant there — which makes it hard to read the affair as bloc alignment, and more consistent to read it as the structural absence of an enforcement mechanism, independent of whichever flag the fugitive flies.

LEGAL COMMENT

The problem is not that two states chose to protect an ally. It is that the Court has no coercive instrument of its own: it depends entirely on the voluntary cooperation of member states for every arrest, every surrender, every enforcement of a judgment. A referral to the Assembly of States Parties is not a sanction: it is the formal record of a non-compliance that no one has the power to end. This is not an occasional gap — it is the structural absence of a police force behind the Rome Statute, the same gap already flagged in relation to the Netanyahu-Mamdani case and reiterated in the Moscow-Khan case.

Fonti: Human Rights Watch, "Tajikistan: Arrest Putin" (8 October 2025) · Courthouse News, "ICC calls out Tajikistan..." (7 May 2026) · Human Rights Watch, "Hungary: Arrest Netanyahu if He Visits" (20 March 2026) · Common Dreams, "ICC Demands Hungary Explain..." (16 April 2025) · Al Jazeera (20 April 2026) · ICC, official record ICC-01/22 (19 March 2026)

Fifteen Years for a Warrant

CONTEXT

On 12 December 2025 a Moscow court convicted the chief prosecutor of the International Criminal Court, Karim Khan, in absentia, sentencing him to fifteen years in prison. Alongside him, eight judges and former officials of the Court — including former president Piotr Hofmanski — received sentences ranging from three and a half to fifteen years. All were declared internationally wanted. Eleven months earlier, another power that never signed the Rome Statute had chosen a different instrument to strike exactly the same officials, for exactly the same reason: an arrest warrant against a head of state or a close ally.

THE RUSSIAN CONVICTION

The most serious charge against Khan and the judges equates the lawful prosecution of a head of state with "an attack on a representative of a foreign state aimed at provoking war" — treating the Court's own conduct as an act of war. The conviction comes almost three years after the ICC, on 17 March 2023, issued an arrest warrant against Russian President Vladimir Putin and Children's Rights Commissioner Maria Lvova-Belova, held responsible for the unlawful deportation of Ukrainian children to Russia from occupied territories. On 4 February 2026, UN Special Rapporteurs called the Russian convictions "null and devoid of legal effect," warning of the risk that using domestic jurisdictions against the Court could become a reproducible precedent for other states.

THE AMERICAN SANCTIONS

On 6 February 2025 Donald Trump signed Executive Order 14203, imposing sanctions on ICC officials, with Khan as the first target: asset freezes, a ban on entry to the United States, restrictions on financial services. Three subsequent rounds — in June, August and December 2025 — extended the sanctions to eight judges and to deputy prosecutors Nazhat Shameem Khan and Mame Mandiaye Niang, also hitting officials who had worked on the investigation into alleged US war crimes in Afghanistan. The stated reason: the warrants against Israeli Prime Minister Benjamin Netanyahu and former Defense Minister Yoav Gallant. The list has since grown: in August 2026 the sanctions reached the Court's president, Tomoko Akane, bringing the total of judges and prosecutors hit to more than a dozen — timeline in The Appeal That Fell Flat.

THE SYMMETRY TEST

Two different instruments — a criminal conviction in absentia, economic sanctions — applied by the same two countries that, not by coincidence, never ratified the Rome Statute, against the same officials, for the same reason. The test holds in both directions: had Moscow imposed sanctions and Washington handed down a criminal conviction, the judgment would not change. Striking at the independence of international justice to protect one's own head of state or a close ally remains the same conduct, whichever flag it flies under. A search for a third comparable case — China, the only other permanent Security Council power that never ratified the Rome Statute — produced no equivalent case: the only public reaction found is a diplomatic call for "prudence" after the arrest of former Philippine president Duterte in March 2025, not a punitive action, and the Court has never issued a warrant against China's own leadership. That gap should be stated as such, not forced shut.

LEGAL COMMENT

The real problem is not that two great powers reacted harshly to warrants that touched them directly. It is that the Court has no coercive instrument of its own: it depends on state cooperation for every arrest, every asset seizure, every enforcement of a judgment. A state that criminally convicts its own judges and one that freezes their bank accounts are, by different means, making the same demonstration: that international justice remains a blunt weapon when it meets someone with the power to ignore it. This is not an occasional enforcement gap — it is the structural absence of a police force behind the Rome Statute, the same gap already flagged in relation to the warrant against Netanyahu.

Sources: OHCHR, Special Rapporteurs (4 February 2026) · The Moscow Times (12 December 2025) · Zona.Media (12 December 2025) · The White House, Executive Order 14203 (6 February 2025) · The Times of Israel (18 December 2025) · Inquirer.net (13 March 2025)

3/6 · ANALYSIS · 7 SEPTEMBER 2026

Niger leaves the International Criminal Court while the United States and Italy continue military cooperation

> *«If those who ordered or conducted the attack did so with criminal intent — deliberately or through recklessness — they would be responsible for war crimes.» — Human Rights Watch, on the Kokoloko drone strike*

THE FACTS

On January 6, 2026, a Nigerien army drone bombed the crowded Kokoloko market in the Tillabéri region, aiming to strike three Islamic State in the Sahel fighters disguised as civilians. Seventeen civilians were killed — 11 women, 2 men, and 4 children aged 5 to 10 — and another 13 were wounded. Human Rights Watch, which reconstructed the strike on the ground, writes that hitting «military and civilian targets without distinction» made the bombing unlawfully indiscriminate. On January 26 the organization sent the military junta a formal request for clarification; it received no response. That same month, a few dozen kilometers away, fighters from the same group executed 30 civilians in Bossieye and Alfaga Daweyzé Koira in reprisal for refusing to pay the zakat or on suspicion of collaborating with the army — Human Rights Watch calls this too an apparent war crime.

Who receives what, from whom. On May 26, 2026, the US embassy in Niamey delivered to the very same Nigerien armed forces — those of the junta responsible for January's bombing — a non-lethal shipment with a declared value of about $2.3 million: uniforms, protective equipment, and medical supplies, explicitly intended to «strengthen the country's capacity to fight extremist groups». Italy, through its bilateral MISIN mission, has a structurally larger commitment underway for 2025-2026: up to 550 authorized Italian troops and a budget of €75.1 million (a figure covering the broader West Africa mission of which Niger is the focus), 23 land vehicles and 5 aircraft, with stated tasks of training — including paramedic training — and border capacity-building against terrorism and trafficking. On June 3, 2026, Human Rights Watch documented that both programs are continuing without any verifiable conditions tied to January's events, and called for the application of the Leahy Laws — the US legislation that bars assistance to foreign military units responsible for gross human rights violations — alongside an independent investigation into the bombing. The following month Niger announced its withdrawal from the International Criminal Court, together with Mali and Burkina Faso; Chad would follow in July.

OTHER INTERESTS AT STAKE

Neither cooperation program has so far been sanctioned or suspended over the documented violations, and there are stated reasons — not necessarily sufficient to justify it — why Washington and Rome have an interest in not breaking ties. For the United States, a specific dispute weighs heavily: roughly 1,000 tons of uranium belonging to the French company Orano have been stranded since 2025 at Niamey airport, after the junta nationalized the Somair mine (June 2025) and an international arbitration tribunal barred the sale or transfer of the material. An Atlantic Council analysis (March 2026) describes this crisis as an opening for US-Niger rapprochement, tied to three stated interests: securing nuclear material, containing Russian influence (Africa Corps) in the Sahel, and the legacy of the $110 million Agadez drone base, closed in the 2024 US withdrawal but not forgotten. For Italy the quid pro quo is not energy but migration, and it is documented from the very origin of the engagement: the Italian government requested sending a contingent to Niger as early as December 2016 (470 troops), with the stated goal of stabilizing the main transit country toward Italy's shores. The defense cooperation agreement was signed on September 26, 2017 — and the government refused for years to publish it in full, treating it as a «political act» exempt from transparency, until the Lazio Regional Administrative Court (TAR) forced its disclosure (November 27, 2018). In that same case the government claimed, as a result of the cooperation, a collapse in migrant transits from Niger to Libya, from 291,912 people in 2016 to about 10,000 by mid-2018, attributed to «funded projects» and «good cooperation» with Nigerien authorities. Today roughly 350 Carabinieri remain in Niger — a corps combining military and police functions, useful precisely for territorial control — while France, the United States, and the UN have been expelled from the country: a July 2026 geopolitical analysis (Ohio State University) notes that the absence of a colonial past comparable to France's or the US's leaves Italy negotiating room other Western actors have lost. One point remains uncovered, worth noting rather than passing over: Niger's 2015-036 law criminalizing migrant smuggling — the legal framework the entire cooperation rested on — was repealed by the junta in November 2023, and Italian cooperation continued regardless.

LEGAL COMMENTARY

Withdrawal from the Rome Statute does not erase the Court's jurisdiction over crimes committed while Niger was a member: the Kokoloko strike remains, in theory, prosecutable. But the withdrawal comes precisely while this type of episode — exactly what that jurisdiction is meant to judge — is pending, and signals an intent not to answer to any future inquiry. An attack that fails to distinguish between combatants and civilians in a crowded place violates the principle of distinction under customary international humanitarian law, which applies to non-

international conflicts as well; individual criminal responsibility would follow whoever ordered or carried out the strike, not the state as such.

On the side of those supplying weapons and assistance, Italy — a State Party to the Arms Trade Treaty and bound by EU Common Position 2008/944/CFSP — has an obligation to assess risk before authorizing or continuing transfers to states for which credible evidence of grave violations of humanitarian law exists: an obligation of conduct, not of result, but one that the mere continuation of relations, without a published assessment, does not appear to satisfy. The United States is not a party to the treaty, but Human Rights Watch itself invokes an equivalent instrument of US domestic law, the Leahy Laws — whose application, by its own admission, it is asking to be strengthened.

IMPLICATIONS — THE SYMMETRY TEST

Here too the test is clean almost by construction, and within the same month: the Islamic State in the Sahel executes civilians in reprisal, the regular army kills others in an indiscriminate strike, and Human Rights Watch applies the same language to both sides — «apparent war crimes» — without mitigation for either. The third element, sharper here than in the Burkina Faso case, is the role of those arming and training: not only does the junta refuse accountability, but the United States and Italy choose not to condition their assistance on any verifiable terms, while the investigation into the apparent war crime remains open.

Sources: Human Rights Watch — Kokoloko drone strike · JURIST · Human Rights Watch — IS Sahel massacres · Human Rights Watch — US/Italy military cooperation · US Embassy Niamey — official announcement (verified via secondary sources, see note) · Analisi Difesa — MISIN 2025 figures · Atlantic Council — uranium crisis and US rapprochement · Altreconomia — Italy-Niger agreement disclosed by TAR Lazio · Ohio State University — why the Carabinieri remain in Niger · ICC — statement on withdrawal

Verification note: the US embassy announcement was not directly reachable (403 error); the cited content is confirmed by cross-checking two outlets that reported it (Shabelle Media, Newsmax) plus HRW's own citation of it. The Italian figure (550 troops, €75.1 million) is the amount authorized for 2025 under the West Africa mission framework — no separate 2026 breakdown was found; to be verified once the new missions decree is issued.

4/6 · ANALYSIS · 26 SEPTEMBER 2026

The Appeal That Fell Flat: Trump, the ICC, and the Weight of What Goes Unrecognized

> *«They're an evil group of people. I call on all nations that are members of the ICC to officially resign from this rogue institution immediately.» — Donald Trump, UN General Assembly, September 22, 2026*

THE FACTS

On September 22, 2026, addressing the UN General Assembly, Donald Trump called the International Criminal Court a "rogue", "out of control" institution, adding that its officials are "an evil group of people". He called on every member state to resign immediately, and reiterated that Washington will never allow American service members or other citizens to face "show trials" by an "anti-American tribunal" with no jurisdiction over the United States. He did not name Israel or Netanyahu.

The outcome, per Reuters, is measurable: across the whole General Assembly, only one country took up the call. Naoero — the small Pacific island nation formerly known as Nauru — announced, through President David Adeang, its withdrawal from the Rome Statute, citing the Court's "increasing irrelevance". A senior State Department official for East Asian and Pacific Affairs hailed the move on X as a defense of sovereignty against the ICC's "illegitimate overreach".

OTHER INTERESTS AT STAKE

The appeal did not come out of nowhere. Under the executive order Trump signed in February 2025, the US has already sanctioned more than a dozen ICC judges and prosecutors; in August 2026 the list extended to the Court's president, Japan's Tomoko Akane. In July, Secretary of State Marco Rubio had promised a campaign to dismantle the Court "brick by brick". Since then, Venezuela and Chad have announced their withdrawal from the Statute, following Burkina Faso, Mali and Niger the year before.

The escalation, reported by the Wall Street Journal and picked up by Reuters, lies in the target: sanctions so far have hit individual officials; now they would target the Court as an institution, with the stated aim of cutting it off from much of the dollar-based financial system after a six-to-

seven-month grace period. No final decision had been made as of the first reports, but US officials told reporters an announcement could come as soon as during the General Assembly or shortly after.

The motive is partly declared by Trump himself, who on other occasions has tied the campaign to protecting Netanyahu, who in 2024 — along with then-Defense Minister Yoav Gallant and a Hamas commander — received an ICC arrest warrant for war crimes in Gaza, where more than 73,000 people have been killed according to Palestinian health authorities. Washington also wants the Court's older investigation into US troops in Afghanistan closed.

In the hall, the pushback came from several directions. Dutch Prime Minister Rob Jetten, whose country hosts the Court, said the ICC is "under attack" and urged the international community to protect global legal institutions, drawing loud applause. Japanese Prime Minister Sanae Takaichi reaffirmed Japan's support for the Court in her own address. The EU, through High Representative Kaja Kallas, said it is considering a blocking statute against any US sanctions. Germany's human rights commissioner, Lars Castellucci, pushed back on Trump's appeal, saying "the most serious crimes must not go unpunished".

LEGAL COMMENTARY

Washington's legal argument deserves to be stated precisely, because it is the one point where its position has a technical basis: the US holds that the Court has no jurisdiction over citizens of states that have not ratified the Rome Statute. The Statute's answer is Art. 12(2)(a): ICC jurisdiction is territorial, not nationality-based. The Court can try crimes committed on the territory of a state party, whoever commits them. Both Palestine and Afghanistan are states parties. The real dispute, then, is not whether jurisdiction exists in the abstract, but whether a non-party state can shield its own nationals — or those of a non-party ally, in Israel's case — from a territorial jurisdiction that belongs to others.

On the duration of its acts, Art. 29 of the Statute provides that crimes within the Court's jurisdiction are not subject to any statute of limitations. A warrant does not lapse when the administration contesting it changes, nor when the wanted person's state refuses to recognize it. Even a withdrawal from the Statute is not immediate: under Art. 127, it takes effect one year after notification — a rule that applies to Naoero too.

IMPLICATIONS — THE SYMMETRY TEST

The first friction concerns declared irrelevance and mobilized sanctions. Naoero justified its withdrawal by citing the Court's "increasing irrelevance", and Washington applauded the choice

as a defense of sovereignty. At the same moment, the administration is preparing the heaviest sanctions ever aimed at an international tribunal against that same Court — so heavy that the Court's presidency and registry have warned that even routine operations could be affected, including buying IT and insurance services or paying dozens of American staff. The US Treasury is not mobilized against a truly irrelevant institution: the campaign undercuts the very argument it applauds.

The second friction concerns intermittent jurisdiction. In March 2023, President Joe Biden called the ICC arrest warrant against Vladimir Putin "justified", while acknowledging that the US does not recognize the Court: "it's not recognized internationally by us either — but I think it makes a very strong point," he said. Back then it was Moscow branding the Court a "politically biased" body and "a puppet" of the West. Today Washington uses not dissimilar language against the same institution. ICC jurisdiction, for two successive US administrations, seems to matter when it hits others.

The third friction concerns what remains. Disowning a court is a political act, and lasts only as long as whoever makes the declaration. The Court's acts follow a different logic: they do not expire, and a withdrawal from the Statute only takes effect a year after notification. Biden's own words on Putin confirm this indirectly: the president of a state that does not recognize the ICC still acknowledged the weight of an act issued by that Court. Non-recognition changes where a wanted person can travel safely. It does not change what has been established, or what remains on the record.

New York, two days later

On September 25, Netanyahu addressed the General Assembly in a hall dozens of delegations had left as soon as he took the podium, amid jeers and cheers alike. He called them "moral cowards", inviting anyone still in the hall to leave. He attacked New York Mayor Zohran Mamdani — who had asked federal authorities to enforce the ICC arrest warrant — calling him "antisemitic" and telling him: "You tried to stop me from coming here. You tried to silence me. Well, you can't silence me." He dismissed the Gaza genocide allegations as "the biggest lie of the century".

Hours earlier, Palestinian President Abbas had addressed the Assembly only by video link: for the second year running, the State Department denied him a visa to enter the United States. Netanyahu, wanted by the ICC, was welcomed in person by the same country that denied entry to the leader of the Palestinian side. The US is not party to the Rome Statute and had no obligation to arrest him; the UN Headquarters Agreement guarantees access to heads of

government regardless. But the asymmetry between who gets in and who is kept out is not explained by any rule. It is a choice.

Sources: Reuters/US News — Trump's UN speech · The Federalist — full quotes and WSJ sanctions report · Reuters — only Naoero follows the appeal · Politiko — Jetten's statement · Al Jazeera — Netanyahu's speech · CBC — Abbas denied a visa · NPR — Netanyahu and Mamdani · Biden on the Putin warrant (March 2023) · Rome Statute — Arts. 12, 29, 127

Verification note: sanctions against the ICC as an institution were, at publication, reportedly prepared but not officially announced — per WSJ/Reuters, not confirmed by the State Department; phrased conditionally. The "more than a dozen" sanctioned officials and Tomoko Akane's designation rely on aggregated press reporting, with no consolidated official list found this session — to verify against the OFAC list once available.

There is a public appeal on the blocking statute the European Union is considering. Eumans, a European political movement chaired by Marco Cappato, asks the European Commission to activate it immediately to shield the Court from US sanctions, and supports the ICC's candidacy for the 2026 Nobel Peace Prize. It is a partisan campaign, not this site's own: we point to it because it concerns the very instrument discussed in this article.

Read and sign the appeal

5/6 · ANALYSIS · 10 OCTOBER 2026

Six months for the Court: Washington sanctions the entire ICC and opens a negotiation over its independence

IN BRIEF

- On 9 October the United States sanctioned the International Criminal Court as an institution. Until then it had targeted at least thirteen judges and other officials of the Court.
- The sanctions do not stop the Court at once. A US Treasury licence keeps salaries, rent, services and member-state payments legal until 7 April 2027.
- Washington says the six months are for member states to show "progress" towards a solution. The US demands are known: withdraw the warrants against Israeli leaders and close the investigation into US troops in Afghanistan.
- The same day, a few hours earlier, the Nobel Peace Prize went to Navi Pillay, a judge of the Court from 2003 to 2008. The sanctions had been ready since September: the sequence is a fact, a link between the two decisions is not proven.
- The Court wrote that its fate is now also in the hands of the states that created it. Eight governments, Italy among them, opposed the sanctions and, in the same statement, offered dialogue to the states that are not members of the Court.

On Friday morning in Oslo, the chair of the Norwegian Nobel Committee announced the Peace Prize and had to ask the winner from the podium to answer her phone if she saw a call from a Norwegian number: they had not managed to reach her (CBS News). The winner was Navi Pillay, 85, a South African jurist, a former judge of the International Criminal Court and later UN High Commissioner for Human Rights. In the afternoon, in Washington, Secretary of State Marco Rubio posted a video: the United States was sanctioning the Court where Pillay had served. Two pieces of news on the same day, about the same Court.

THE FACTS

On 9 October the State Department designated the International Criminal Court under Executive Order 14203, signed by Donald Trump in February 2025. Until that day the order had been used against individuals: at least thirteen officials of the Court, including nine judges, President Tomoko Akane and the two deputy prosecutors who now lead the Office of the

Prosecutor, as well as the UN special rapporteur Francesca Albanese (OFAC, list of designations). Now the target is the institution.

In the video Rubio said the United States would ban transactions with this "rogue court", cutting off its resources and crippling its ability to operate, and that President Trump will never allow the Court to prosecute Americans. He ended with an ultimatum: either the Court ends its threats, or the United States will end the Court (The National).

What it bans, and what it does not. A sanction of this kind forbids US citizens and companies from any transaction with the Court without a Treasury authorisation, and in practice also deters foreign banks, which depend on the US financial system (Reuters, via The Senior). But alongside the designation the Treasury published four general licences. The most important, No. 13, authorises until 00:01 (Washington time) on **7 April 2027** all transactions needed to maintain or wind down the Court's operations. The text lists them: member-state payments, salaries, staff health insurance and medical care, rent, utilities, taxes, subscription services, invoices from before 9 October (OFAC, General License No. 13). The other three licences keep legal telecommunications, internet and software services, staff pension payments and the detention of defendants already in custody in The Hague (The Sanctions Drop).

In other words: today the Court keeps working. In six months, unless the licence is extended, it will not.

Why six months. According to the State Department, the period is meant to give the Court's member states a chance to show "meaningful progress" towards diplomatic and legal solutions, which could lead to the sanctions being lifted or the licence extended (The Sanctions Drop, quoting the statement). What Washington considers progress it has said many times: the withdrawal of the 2024 arrest warrants against Israeli Prime Minister Benjamin Netanyahu and former defence minister Yoav Gallant, and the closure of the old investigation into US troops in Afghanistan (Reuters, via The Senior).

THE REACTIONS

The Court called the sanctions an attack on the rule of law and on the foundations of the international legal order. President Akane said the Court will keep carrying out its mandate with independence and impartiality, on the basis of the law and the evidence, for the victims of grave crimes (UPI). The statement adds that the Court cannot act alone, and that its fate is now also in the hands of the states that created it (Corriere della Sera). Deputy Prosecutor Nazhat Shameem Khan, herself sanctioned in 2025, told Reuters the measures must be condemned (Jerusalem Post, from Reuters).

States responded in two ways at once: by defending the Court and by offering dialogue.

- **Eight governments, Italy included.** The foreign ministers of Italy, Canada, Denmark, France, Germany, Japan, the Netherlands and the United Kingdom signed a joint statement. They express firm opposition to the sanctions and support for the Court's independence, and warn that, if applied, they would have a significant impact on its work and its staff. In the same statement they commit to a "constructive and inclusive" dialogue with the states that are not party to the Statute, ahead of the Assembly of States Parties in December 2026 (Corriere della Sera). The next day Italian foreign minister Antonio Tajani told Il Messaggero that Italy "firmly" opposes the sanctions and will keep supporting the Court (Italpress).
- **European Union.** On 9 October the Commission called the announcement deeply regrettable and said it was ready to take all necessary measures to let the Court work and to protect European operators in the single market; with six months of transition, it added, there is room for dialogue (Corriere della Sera). On 10 October High Representative Kaja Kallas, on behalf of the Union, asked the United States to withdraw the sanctions. In the same statement she welcomed Washington's willingness to engage with the states parties and read the postponement of the measures as room for diplomacy (Sky TG24). The blocking statute, which only the Commission can activate, had not been activated by the evening of 10 October.
- **European Union, after 10 October.** On 14 October 58 MEPs asked the Commission to activate the blocking statute (Euronews). For now the Commission is betting on diplomacy (EUobserver). In its conclusions of 16 October the European Council "deeply regrets" the sanctions, urges the United States to reverse them and asks the Commission to take "all appropriate initiatives" to protect the Court and mitigate the sanctions, in particular for European companies that provide it with services. The blocking statute is not mentioned (European Council, conclusions). On the eve of the summit, according to a diplomatic source, governments were split between those who want to act now and those who prefer dialogue; Belgium has asked the Commission to prepare its activation (Agence Europe). We also discuss this in "Who really decides Europe's choices".
- **Netherlands.** Prime Minister Rob Jetten said his country will protect the Court "brick by brick", turning Rubio's phrase around. He also explained that several countries are working on proposals to reform the Court, and that the message to the Americans is to take part in that dialogue (Corriere della Sera). Foreign Minister Tom Berendsen welcomed the six-month period as an opportunity to explore with the other member states (News.az, from Anadolu).
- **Other European governments.** European Council President António Costa said international justice must be defended and that the Union will use political, diplomatic,

financial and practical tools (TRT World). Belgian Foreign Minister Maxime Prévot called for the EU blocking statute to be activated to protect the Court (Al Jazeera). Austria, Denmark, Portugal and Sweden also condemned the sanctions; Switzerland, which is not in the Union, said it opposes sanctions and threats against the Court's independence (TRT World).

- **UN.** Secretary-General António Guterres said he was deeply alarmed: in his view the decision is a serious blow to international criminal justice (Al Jazeera). High Commissioner for Human Rights Volker Türk called the sanctions unacceptable (Corriere della Sera).
- **United States, on the Nobel.** At a rally in Syracuse on the evening of 9 October, Trump said he had never heard of Pillay and called the Committee's choice a "disgraceful and embarrassing decision", an "indelible stain" on Norway (GV Wire, from Reuters). He did not mention the Court.
- **South Africa.** President Cyril Ramaphosa congratulated Pillay, placing her alongside Luthuli, Tutu, Mandela and de Klerk. His message does not mention the Court or the sanctions (SAnews).
- **Israel.** Prime Minister Benjamin Netanyahu congratulated Trump and Rubio and wrote that the Court is not a court but a political body (Corriere della Sera).

On the Nobel, the harshest reaction came from Israel. Foreign Minister Gideon Sa'ar called the prize a grotesque exploitation and wrote that, if there were a prize for lies and slander, Pillay would be the clear favourite. He called her conclusions on Gaza the greatest lie of the century, going as far as invoking Goebbels (Open). The target is Pillay's work at the head of the UN Commission of Inquiry on the Occupied Palestinian Territory. Its 2025 report concluded that Israeli forces and leaders had committed four of the five acts of genocide listed in the 1948 Convention.

The Committee chair, Jørgen Watne Frydnes, replied that this work comes from a UN commission, that the Committee has full confidence in Pillay's professionalism, and that deciding whether it is genocide is a matter for international courts, not for the Committee. Pillay said she does not understand why it should take courage to tell the truth (Open). The next day, speaking by video link from Nuremberg to the Nobel Peace Center in Oslo, she called sanctions against judges for their rulings "unheard of, unacceptable" (Dawn, from AFP).

As far as we could verify, by the evening of 10 October there were no official statements from Russia, China and India, which are not members of the Court, nor from Brazil, which is (Rio Times, for Brazil).

THE NOBEL AND THE SEQUENCE OF EVENTS

The Committee awarded Pillay the prize "for her efforts to promote peace and international law", writing that she has been instrumental in ensuring that war crimes, crimes against humanity and genocide are prosecuted, and that the prize is meant to remind the world that the rule of law, national and international, underpins the system built to keep the peace (nobelprize.org). Pillay now sits on the International Court of Justice in the case in which Myanmar is accused of genocide against the Rohingya. She dedicated the prize to the survivors of international crimes (Al Jazeera).

The temptation is to read the sanctions as a response to the prize. The facts do not support it. As early as 21 September two sources told Reuters that the sanctions against the whole Court were ready and only the date was missing (Reuters, via The Senior). We reported it at the time, covering Trump's appeal at the UN. The coincidence of dates is real, and it says something about how two institutions look at the same law. A motive, it is not.

HOW WE GOT HERE

Date	Event
2020	The first Trump administration sanctions Prosecutor Fatou Bensouda over the Afghanistan investigation. Biden lifts the sanctions in 2021.
September 2021	The new prosecutor, Karim Khan, deprioritises the part of the investigation concerning US forces and the CIA, citing limited resources, and focuses on the Taliban and the Islamic State (Al Jazeera).
November 2024	Arrest warrants for Netanyahu, Gallant and Hamas commander Mohammed Deif.
February 2025	Executive Order 14203; first person sanctioned: Karim Khan.
June–August 2025	Sanctions on six judges and the two deputy prosecutors.
December 2025	The Appeals Chamber rejects, by three votes to two, an objection by Israel in the Palestine case. Three days later the United States sanctions two judges of the panel.
July 2026	Rubio announces a campaign to "dismantle" the Court. The Assembly of States Parties removes Khan for serious misconduct.
August 2026	Sanctions on President Akane and a prosecution trial lawyer.
September 2026	At the UN Trump asks all states to leave the Court; only Naoero responds.
9 October 2026	Sanctions on the Court as an institution.

LEGAL ANALYSIS

1. The disputed jurisdiction. The US position is that the Court cannot try nationals of states that have not joined the Rome Statute, such as the United States and Israel. The Statute says otherwise: under Article 12, the Court tries crimes committed on the territory of a state party, whatever the nationality of the perpetrator. It is the same rule under which a national court tries a foreigner who commits a crime on its soil. Afghanistan and Palestine are states parties. We explained it in more depth here.

Israel contests this reading with two serious arguments: Palestine would not be a state for the purposes of the Statute, and under the Oslo Accords it would have no criminal jurisdiction over Israelis to transfer to the Court (Lieber Institute, West Point). In April 2025 the Court's Appeals Chamber sided with Israel on a procedural point and asked the judges to examine that challenge on the merits (JURIST). In January 2026 that examination was still under way. On another objection, that the Court should have notified Israel and given it the chance to investigate itself, the Appeals Chamber ruled on 15 December 2025 and rejected it by three votes to two; three days later the United States sanctioned two judges of that panel (Just Security). Meanwhile the warrants remain valid (The New Arab, from Reuters). That is where the question must be decided: in a court, not in a Treasury licence.

2. Who decides what. Neither the judges nor the prosecutor can "withdraw" a warrant by political agreement: a warrant is revoked by a judicial decision. Member states have no power to do so. They do have indirect tools: the budget, the election of the new prosecutor, whom the Assembly of States Parties must choose after Khan's removal, and political pressure. These are the tools the six months will be played on.

3. The immunity of those who judge. Article 48 of the Statute grants judges and prosecutors immunity for acts performed in their official capacity. UN experts recalled it when Russia convicted Khan and eight judges in absentia over the warrant against Putin (JURIST). It applies today too.

THE SYMMETRY TEST

Moscow and Washington. In December 2025 a Moscow court sentenced Prosecutor Khan to fifteen years and eight judges to terms of up to fifteen years for issuing the warrant against Putin. We covered it in Fifteen Years for a Warrant. President Akane is now convicted by Russia and sanctioned by the United States: two powers that do not recognise the Court and target the same people, for opposite reasons. The yardstick must be the same.

Critics from within. Mali, Burkina Faso, Niger, Venezuela and Chad notified their withdrawal from the Statute in 2026, accusing the Court of bias against Africa and Latin America (BSS, from AFP). Hungary had done the same in 2025, but the new government revoked the withdrawal before it took effect (ASIL).

Italy. In January 2025 Italy arrested and then flew back to Libya on a state flight Osama Almasri, wanted by the Court for crimes against humanity. The Court found that Italy had failed to comply and in January 2026 referred Italy to the Assembly of States Parties (University of Padua, Human Rights Centre). In February 2025, when Trump signed the executive order, Italy was not

among the 79 states that signed a statement in defence of the Court (LaPresse). This time Rome signed the statement of the eight in defence of the Court. It is a change of position, and it should be recorded. The Almasri case remains open: those who defend the Court against Washington must ask Rome for the same consistency.

The Court itself. The Court has its limits, and a piece that defends it must not hide them. By mid-2025, according to Reuters, it had eleven convictions and four acquittals in more than twenty years, only six of them for the gravest crimes (Daily Maverick, from Reuters). Almost all defendants are African (University of Minnesota, Imagine Rights). In July 2026 its chief prosecutor was removed over harassment, by 82 votes out of 125; he denies it and is appealing (Anadolu). And the Afghanistan investigation, which Washington wants closed, had already been scaled back by the Court itself in 2021, amid criticism from human rights organisations (Al Jazeera).

EDITORIAL JUDGMENT

This section expresses the site's position. It is separate from the facts set out above.

The headline was "the United States sanctions the Court". The text of Licence No. 13 tells a subtler story: the Court is not being shut down, it is being put under conditions. Salaries, rent and state contributions remain legal for six months. Then, if nobody has made "progress", the lights go out. It is not a blow: it is a countdown, and an invitation to bargain.

That is why the question for the coming months is not about Washington, whose position is clear. It is about the 125 states that created the Court, and the Court itself says so: its fate, it wrote, is in their hands. The first answer came the same day, and it already contains both paths: firm opposition to the sanctions and, in the same sentence, dialogue with those who impose them, reforms, the December Assembly. They can use these six months to truly protect it: banks and suppliers beyond the reach of the US Treasury, a European shield that works, a prosecutor elected without strings attached. Or they can use them to "dialogue", as the Dutch government put it, and discover that the price of dialogue is an investigation left to die or a prosecutor chosen not to disturb. The first scenario saves a court. The second saves the building and empties the court.

A Court that survives by giving up on judging those protected by a great power is no longer the same Court. It would be, literally, what Moscow, the Sahel governments and now Washington accuse it of being: a tool that works only against the weak.

WHAT TO WATCH

- The full State Department statement and the duration of licences No. 14, 15 and 16.
- The European Union's response: whether or not it activates the blocking statute, and whether it can protect an international institution.
- The positions of member states, starting with the Netherlands, Germany, Japan (the Court's largest funder) and Italy.
- Whether and how Russia, China, India and Brazil, silent so far, will speak.
- The Assembly of States Parties in December 2026, the "dialogue" with non-member states and the reform proposals announced by Jetten: what they contain.
- The election of the new prosecutor.
- The judges' decision on Israel's jurisdiction challenge, pending for more than a year.
- 7 April 2027: extension, lifting or block.

Sources: CBS News · OFAC, list of designations · The National · Reuters, via The Senior · OFAC, General License No. 13 · The Sanctions Drop · UPI · Corriere della Sera · Jerusalem Post, from Reuters · Italpress · Sky TG24 · News.az, from Anadolu · TRT World · Al Jazeera · GV Wire, from Reuters · SAnews · Open · Dawn, from AFP · Rio Times · nobelprize.org · Al Jazeera · Al Jazeera · Lieber Institute, West Point · JURIST · Just Security · The New Arab, from Reuters · JURIST · BSS, from AFP · ASIL · University of Padua, Human Rights Centre · LaPresse · Daily Maverick, from Reuters · University of Minnesota, Imagine Rights · Anadolu · Al Jazeera · Euronews · EUobserver · European Council, conclusions · Agence Europe

6/6 · OPINION · 11 OCTOBER 2026

The lighthouse

On 9 October, a few hours apart, two things happened. In Oslo, the Nobel Peace Prize went to Navi Pillay, a former judge of the International Criminal Court. In Washington, the United States sanctioned that same Court as an institution, and Secretary of State Marco Rubio promised to paralyse it (our analysis). The sanctions had been ready since September, and there is no evidence that the two decisions are linked. But together they raise a simple question.

The Court has no police force. To arrest anyone it depends on states, and states often do not do it. Vladimir Putin, wanted since 2023, was received with full honours in Mongolia and Tajikistan, two member states of the Court. Benjamin Netanyahu, wanted since 2024, was welcomed in Hungary while Hungary was still a member (the unexecuted warrants). So why go to such lengths to fight a court whose warrants often stay on paper?

WHAT A WARRANT DOES WITHOUT HANDCUFFS

Because an unexecuted warrant is not a warrant without effect.

It changes the map of the world for the person it names. In August 2023 Putin did not go to the BRICS summit in Johannesburg. South African President Cyril Ramaphosa had written in a court filing that his country, a member of the Court, had "obvious problems" with arresting him; the solution was a video link (PBS, from AP). Since then, every trip has been a calculation.

It does not expire. Under Article 29 of the Rome Statute, these crimes are not subject to any statute of limitations (we explained it here). The warrant waits. Ratko Mladić was indicted by the Tribunal for the former Yugoslavia in July 1995 and arrested in May 2011, sixteen years later (ICTY). Rodrigo Duterte had taken the Philippines out of the Court in 2019; in March 2025 he was handed over to The Hague, and in April 2026 he was committed to trial (the ICC's fugitives). Governments change. The record remains.

And the record is what stays. A warrant or a judgment of the Court is not an opinion. It is a finding reached by rules: evidence gathered, witnesses heard and put on the record, an accused who has the right to defend himself. That archive outlives those who contest it.

WHERE THE SANCTIONS STRIKE

Those who want to stop the Court know this. That is why the sanctions do not target its judgments, which cannot be erased, but its ability to write new ones: salaries, banks, suppliers, software. In 2025, according to the AP news agency, prosecutor Karim Khan, personally

sanctioned, had lost access to his Microsoft email; the company denied having suspended its services to the Court (heise). The Court nonetheless decided to switch to European software (Irish Legal News). Today a US Treasury licence keeps salaries and services legal until 7 April 2027. After that, if nobody has made "progress", the light goes out.

WHAT I THINK

What follows is my assessment, not a fact.

If the Court falls, our lighthouse falls.

A lighthouse does not stop ships. It does not save them from heavy seas, it does not pull them off the rocks. It does one thing only: it shows where the rocks are, to everyone, every night, even to those who do not want to see them. And whoever runs aground on them cannot say they were not there.

That is what the Court does. It has no police force, and perhaps it never will. Its decisions can go unenforced for years. But they stay in the record of history: indelible documentation. And that is exactly why they are feared. If they were mere paper, no government would spend sanctions on a court. You sanction what carries weight.

I know the lighthouse mostly comforts those who write history. It does not comfort those dying today in Gaza, in Sudan, in Ukraine. A Ukrainian mother waiting for a child deported to Russia does not need a record: she needs her child. The Court saves no one in real time, and those who defend it must not claim otherwise. But it prevents anyone from saying, one day, that it did not happen, or that nobody knew. It is no accident that Navi Pillay dedicated her prize to the survivors.

I also know the lighthouse is not perfect. In more than twenty years the Court has handed down few convictions, almost all against Africans. Its chief prosecutor has been removed. The investigation into US troops in Afghanistan was scaled back by the Court itself, in 2021. These are real criticisms, and we have written them. But a light that shines badly is repaired. It is not switched off.

There is one more detail that should not be forgotten. Those who want to put out this light are, each for their own reasons, Washington and Moscow: Moscow has convicted the prosecutor and eight judges in absentia (Fifteen years for a warrant); Washington has sanctioned judges and prosecutors, and now the whole Court. When two powers that trust each other on nothing agree on a single target, it means that target shines its light on both of them.

The six months of the licence are now in the hands of the 125 states that belong to the Court, Italy included. They can truly protect it: banks and suppliers beyond the reach of the US Treasury, a European shield that works, a prosecutor chosen without conditions. Or they can bargain, and discover that the price is a lighthouse that stays lit but no longer shows certain rocks. A lighthouse that goes dark when the wrong ship passes is not a lighthouse. It is stage scenery.

To the governments that in recent days have said they defend the Court, my own included, I ask one thing only: to defend it even when it costs them. Even when the wanted man lands on their own soil. Italy sent Osama Almasri back to Libya on a state flight, and the Court referred it to the other member states for that reason (our analysis). Whoever defends the lighthouse cannot switch it off when it suits them.

Sources: PBS, from AP · ICTY · heise · Irish Legal News

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